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Government of India
Ministry of Personnel, Public Grievances & Pensions
Department of Personnel and Training
ESTT.(Estt. A-III)

(Dated 23 September, 2022)

OFFICE MEMORANDUM

Representation from Government servants on service matters

Department of Personnel and Training has issued various instructions from time on redressal of grievances filed by Government servant on service matters. These instructions are broadly categorized as under:

-) Representation from Government servant on service matters
-) Redressal of grievances – Recourse to courts of law by Government servant

2. All these instructions issued till date have been consolidated under easily comprehensible headings for reference and guidance of all the concerned.

Part-A: Representation from Government servant on service matters

Whenever, in any matter connected with his service rights or conditions, a Government servant wishes to press a claim or to seek redressal of a grievance, the proper course for him is to address his immediate official superior, or the Head of Office, or such other authority at the appropriate level who is competent to deal with the matter in the organization.

[OM No: No. 118/52-Ests. Dated: 30/4/1952](#)

[OM No: F. No. 11013/08/2013-Estt\(A-III\) Dated: 31/8/2015](#)

v Action by the authorities on the representations from Government servants on service matters:-

Sl. No.	Type of representation/ grievance	Action by the authorities
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1.	(i) Representations/complaints regarding non-payment of salary/allowances other dues. (ii) Representations on other service matters.	If the individual has not received a reply thereto within a month of its submission, he could address or ask for an interview with the next higher officer for redress of his grievances. Such superior officer should immediately send for the papers and take such action as may be called for, without delay.
(2)	Representations against the orders of the immediate superior authority	These types of representations would be made generally only in cases where there is no provision under the statutory rules or orders for making appeals or petitions. Such representations also should be dealt with as expeditiously as possible. The provisions of the Sl. No. 1 above would apply to such representations also but not to later representations made by the same Government servant on the same subject after his earlier representation has been disposed off appropriately.
(3)	Appeals and petitions under statutory rules and orders (e.g. Classification, Control and Appeal Rules and the petition instructions)	Although the relevant rules or orders do not prescribe a time limit for disposing of appeals and petitions by the competent authority, it should be ensured that all such appeals and petitions receive prompt attention and are disposed within a reasonable time. If it is anticipated that an appeal or a petition cannot be disposed of within a month of its submission, an acknowledgement or an interim reply should be sent to the individual within a month.

[OM No: No. 25/34/68-Estt \(A\) Dated: 20/12/1968](#)

v **Representations directly to the higher authorities by-passing the prescribed channel of communication-**

(a) It is observed that there is an increasing tendency on the part of officers at different levels to by-pass the prescribed channels of representation and write directly to the high functionaries totally ignoring the prescribed channels. The problem is more acute in large Departments where often very junior employees at clerical level address multiple representations to the Minister, Prime Minister and other functionaries. Apart from individual representations, the service unions have also developed a tendency to write to the Ministers and Prime Minister on individual grievance. Some of these representations are often forwarded through Members of Parliament, in violation of Rule 20 of the CCS (Conduct) Rules, 1964.

[OM No: No. 11013/7/99-Estt. A Dated: 1/11/1999](#)

[OM No: No.11013/08/2013-Estt.\(A\)-III Dated: 6/6/2013](#)

(b) DoPT is also receiving a number of representations on service matters addressed to Prime Minister/ Minister/ Secretary (P) and other higher authorities/officers directly from the Government servants including the officers/ officials of para military forces and Army personnel.

[OM No: No.11013/08/2013-Estt.\(A\)-III Dated: 6/6/2013](#)

[OM No: F. No. 11013/08/2013-Estt\(A-III\) Dated: 31/8/2015](#)

(c) In view of adequate instructions being available in the matter of submission of representations by the Government servants and treatment of the representations by the authorities concerned, submission of representations directly to higher authorities by passing the prescribed channel of communication, has to be viewed seriously and appropriate disciplinary action should be taken against those who violate these instructions as it can rightly be treated as an unbecoming conduct attracting the provisions of Rule 3 (1) (iii) of the CCS (Conduct) Rules, 1964. It is clarified that this would include all forms of communications including through e-mails or public grievances portal etc.

[OM No: No. 11013/7/99-Estt. A Dated: 1/11/1999](#)

[OM No: No.11013/08/2013-Estt.\(A\)-III Dated: 6/6/2013](#)

[OM No: F. No. 11013/08/2013-Estt\(A-III\) Dated: 31/8/2015](#)

v **Treatment of Advance copies of representations so received should be governed by the following general principles-**

(a) If the advance copy does not clearly show that all means of securing attention or redress from lower authorities have been duly tried and exhausted, the representation should be ignored or rejected summarily on that ground, the reasons being communicated briefly to the Government servants. If the Government servant persists

in this prematurely addressing the higher authorities, suitable disciplinary action should be taken against him.

- (b) If the advance copy shows clearly that all appropriate lower authorities have been duly addressed and exhausted, it should be examined to ascertain whether on the facts as stated, some grounds for interference or for further consideration, prima facie exist. Where no such grounds appear, the representation may be ignored or summarily rejected, the reasons being communicated briefly to the Government servant.
- (c) Even where some grounds for interference or further consideration appear to exist, the appropriate lower authority should be asked within a reasonable time, to forward the original representation, with its report and comments on the points urged. There is ordinarily no justification for the passing of any orders on any representation without thus ascertaining the comments of the appropriate lower authority.

[OM No: No. 118/52-Ests. Dated: 30/4/1952](#)

▼ **Representation from the relatives of Government servant**

Relatives of a Government servant sometimes make representations concerning service matters affecting the Government servant. This is done in some cases in the hope of reviving a representation which the Government servant had himself made and which had been turned down. In some cases, this procedure is resorted to in order to get round the requirement that the Government servant should submit his representation through his official superiors. The practice is obviously undesirable, and should be strongly discouraged. It has accordingly been decided that no notice should be taken of a representation on service matters submitted by a relative of a Government servant. The only exceptions may be cases in which because of the death or physical disability, etc. of the Government servant, it is impossible for the Government servant himself to submit a representation.

[OM No: 25/21/63-Ests.\(A\) Dated: 19/9/1963](#)

▼ **Disciplinary Action on violation of these instructions**

Appropriate disciplinary action may be taken against those who violate these instructions.

[OM No: No. 11013/7/99-Estt. A Dated: 1/11/1999](#)

[OM No: No.11013/08/2013-Estt.\(A\)-III Dated: 6/6/2013](#)

Part-B: Redressal of grievances – recourse of courts of law by Government servant

- (a) Government servants seeking redress of their grievances arising out of their employment or conditions of service should, in their own interest and also consistently with official propriety and discipline, first exhaust the normal official channel of redress before they take the issue to a court of Law.

(b) Where, however, permission to sue Government in a court of Law for the redress of such grievances is asked for by any Government servant either before exhausting the normal official channels of redress or after exhausting them, he may be informed that such permission is not necessary.

[OM No: No. 25/3/59-Ests. \(A\) Dated: 21/4/1959](#)

[OM No: No. 25/29/63-Ests-\(A\) Dated: 26/11/1963](#)

Note: In case any reference to the relevant OM is required, the same may be accessed by clicking on the hyperlink or from the DOPT's website.
